

Unless otherwise indicated, all references to transcripts are to trial transcripts in unpublished cases and are referenced by date and page number(s). Names of parties and docket numbers of cases are omitted to protect the privacy of the parents and children involved in the proceedings.

Prologue

1. Schechter and Edleson, *Effective Intervention in Domestic Violence and Child Maltreatment: Guidelines for Policy and Practice*. Reno, NV: National Council of Juvenile and Family Court Judges, 1999. This text will be referred to hereafter as the “Greenbook.”

2. *Id.*, p. 5

3. Salcido Carter, “Advocacy Perspectives on the Greenbook,” 87.

4. Part of our motivation to write a second edition was the emergence of some critical study findings, which came out a decade or so after the publication of the first edition. These studies highlighted the dire conditions in our nation’s family courts. For example, the suffering of children due to ingrained gender biases in the family courts was meticulously shown in by Joyanna Silberg and Stephanie Dallam in their noteworthy article, “Abusers Gaining Custody in Family Courts.” The authors studied twenty-seven cases across the United States in depth, reviewing the trial court and appellate records. They focused exclusively on cases that were overturned by the appellate courts based on findings of fact, not mere procedural reversals. They referred to this phenomenon as “turned around cases” which involved charges of child abuse that were initially

perceived as “false” but later judged to be credible. In two-thirds of the cases the mothers’ allegations were treated with utmost suspicion and the mothers were “pathologized” (given undeserved mental illness labels by so-called experts) for attempting to protect their children from suspected abuse. Alas, the authors found that the average amount of time the child was court ordered to live with the credibly abusive father was 3.2 years—a significant amount of time and highly traumatic for a young child. Unfortunately, most mothers do not have the financial resources to appeal their cases after their funds have been depleted in protracted trial court litigation. And even when they do have resources to file an appeal, higher courts do not often overturn trial court decisions when they involve family matters.

5. “Call for Inputs—Custody Cases, Violence against Women and Violence against Children.”

6. Women’s Coalition News & Views, “UN Human Rights Council Takes on the Custody Crisis.”

7. UN, “Urgent Reforms Needed to Protect Women and Children from Violence in Custody Battles.”

8. Justin Wm Moyer, “In Child Custody Dispute, Breastfeeding Mom is Ordered to Use Bottle.”

9. Neustein and Etlin, “Infants are being penalized in the name of men’s rights.”

10. In the Spring 2022 issue of *Family & Intimate Partner Violence Quarterly*, a publication of the well-respected Civic Research Institute, authors Barry Goldstein and Elizabeth Liu analyzed the destructive impact of guardians ad litem (also known as law guardians, minor’s counsel, attorney for the child, etc.) as “the heaviest contributors to unjust family court rulings” (p. 25).

11. Neustein, “Trafficking of Minors by Child Protective Services/Foster Care Agencies/Minor’s Counsel,” 2–3.

12. See National Safe Parents Organization, <https://www.nationalsafeparents.org/>.
13. Mothers ReVolution, “About Us,” <https://protectivemothersrevolution.org/about-mothers-revolution/>.
14. See Custody Peace, <https://www.custody-peace.org/>.
15. See The Women’s Coalition, <https://womenscoalitioninternational.org>.
16. See Safe Kids International, <http://www.safekidsinternational.org/>.
17. Swithin, *Divorcing a Narcissist: One Mom’s Battle*. <https://www.onemomsbattle.com>.
18. The Leadership Council, “Advisory Board,” <https://leadershipcouncil.org/about-us/>.
19. See California Protective Parents Association, <https://caprotectiveparents.org>.
20. Amy Neustein, “Reform of the Family Court System,” Women’s Law Forum at the Rutgers State University School of Law, New Brunswick, NJ, November 6, 1990. The forum was organized by legal scholar and activist H. Joan Pennington.
21. See California Protective Parents Association, <https://www.caprotectiveparents.org/forward-together-conference>.
22. Amy Neustein was given a citation of appreciation for serving as visiting faculty at the Tri-State Family Law Conference held by the National Judicial College, University of Nevada, at the Mount Washington Hotel (Omni Mount Washington Resort) in Bretton Woods, New Hampshire, March 18, 2005.
23. Joan Meier, <https://www.pli.edu/faculty/joan-meier-i315296>
24. Stahly, Valentine, and York, “Protective Mothers, Endangered Children,” 7.
25. *Id.*, 34.

26. Udesky, “Custody in Crisis.”

27. Schmidt, “A Gendered Trap.”

28. Meier, “U.S. Child Custody Outcomes in Cases Involving Parental Alienation and Abuse Allegations,” 98. See also Meier et al., “Child Custody Outcomes in Cases Involving Parental Alienation and Abuse Allegations.” See also Neustein, “Mothers Who Report Abuse Still Losing Custody at Staggering Rates.”

29. Meier et al., “Harman and Lorandos’ False Critique of Meier et al.’s Family Court Study,” 135.

30. Domestic violence advocate Barry Goldstein, in summarizing the family court system’s abysmal track record in protecting women and children, pointed out how gender-based discrimination had become deeply lodged in the belief system of judges and others notwithstanding an impressive body of literature reporting on empirical studies that show that deliberately false reports of sex abuse aimed at an ex-partner by a vengeful woman are exceedingly rare: “The courts adopted flawed practices at a time when no research was available and have continued these discredited practices despite the current scientific research that rejects them.” M.T. Hannah and B. Goldstein, eds., *Domestic Violence, Abuse, and Child Custody: Legal Strategies and Policy Issues*, vol. II, xxviii.

31. Pollack, “Parents Say Family Courts Too Often Ignore Allegations of Violence in Custody Disputes.”

32. Gentile, “Her Son Said Her Ex Sexually Abused Him.”

33. Rosen, *Beyond the Hostage Child*. A second edition was published in 2017, following the first edition which was published in 2014.

34. Grant, “*End the Nightmare at Family Court*.”

35. Allen, “Reviews: Children of the Underground.”

36. One of the authors of this book appears as the first voice-over in the trailer teaser, pointing out how dire it is for mothers betrayed by the family courts to live as fugitives from the law. See the “Official Teaser” for

Children of the Underground at <https://www.youtube.com/watch?v=v08Zi2GrpY0>.

37. Carner, “Run, Mommy, Run.”

38. Neustein, “Mothers Face Civil Rights Crisis in the Family Courts.”

39. Here is a partial list of Amy Neustein’s subsequent editorials in Women’s eNews on the protective mother issue. (A more complete list appears in the References): “Family Court Drives Mothers to Suicide: Former Brooklyn Federal Prosecutor is Latest Victim,” June 4, 2023; “Mothers Likewise Suffer from Poor ‘Debate’ Performance: But the Consequences are Far Worse,” July 14, 2024. These last two, below, were co-authored with Michelle Etlin: “Mothers’ Vote May Be Key to Kamala Harris Winning Nomination — and Defeating Trump,” July 23, 2024; “Schumer’s No Kings Act Challenges the Sacrosanct Judiciary — While Giving Hope to Mothers,” August 5, 2024.

40. The authors of this book wanted to participate in this noble effort. So, we bought one hundred copies from the publisher and donated them to Connie Valentine’s nonprofit organization, the California Protective Parents Association.

41. H.Con.Res.72: Expressing the sense of Congress that child safety is the first priority of custody and visitation adjudications, and that State courts should improve adjudications of custody where family violence is alleged, *115th Congress (2017–2018)*, Library of Congress, <https://www.congress.gov/bills/115/congressional-resolutions/72>.

42. A local Colorado resident, protective mother and author, Maralee McLean, was instrumental in the enactment of Kayden’s Law in her state. Her perseverance helped to make Colorado the first state to pass Kayden’s law in whole, without any dilution or selective omission of any of the provisions set forth in VAWA.

43. Pennsylvania, in addition to enacting “Kayden’s Law,” passed a law of its own to mirror this provision in VAWA. In late fall 2023, the Pennsylvania State Senate unanimously passed a bill in honor of Kayden

Mancuso, which Governor Josh Shapiro signed into law in April 2024. See Neustein and Etlin, “One Group of Mothers Who Need Kamala Harris’s Help.”

44. Increasingly, mothers are learning to protect themselves against such threats by writing e-mails and letters to government offices and legislative bodies about their cases, as no family court judge can prohibit a US citizen from speaking to governmental authorities about their life.

45. Personal communication with New York family law attorney Joshua Douglas on October 19, 2021. Douglas explained that the visitation centers were not profitable when devoted, as they were at first, to the supervision of abusive fathers. According to Douglas, fathers who realized they could no longer have unrestricted access to the children they had abused would generally quit the program, seeing that it was not serving their needs. Mothers, on the other hand, would come regularly for their supervised visits, regardless of the fees, because their priority was to nurture their children. Soon, those who controlled the visitation centers realized that “mothers will crawl on their bellies to see their children” while an abusive father will “simply start a new family.” After this, according to Douglas, the family courts made a point of imposing supervised visitation on mothers more than on fathers, guaranteeing that the visitation centers would be run more profitably. Douglas—a seasoned family lawyer—acknowledged that “on the face of it this sounds bizarre” but added that when one examines the “contorted family court proceedings against mothers” it becomes apparent that there is “another agenda” behind the publicly stated goals of the system.

introduction

1. We use the term “family court” to refer to any trial-level court handling domestic relations matters, such as divorce, custody, visitation, or child support. In some states these courts are called by the name

Family Court. In many jurisdictions, specific matters of child abuse and neglect are heard exclusively by the Juvenile Courts or Children's Courts. In some states these matters are heard by trial courts of general jurisdiction.

2. The term "protective parent" is used if the accused abuser is a father, stepfather, grandfather, or someone else within the immediate family circle. It is not applied to parents charging abuse by others, such as pastors or teachers.

3. Pennington, *The Judicial Training Act*.

4. Personal communication with Rita Henley Jensen, July 15, 2004. Women's eNews can be found at www.womensenews.org.

5. Letter from Bonnie Campbell to Amy Neustein, December 15, 1998.

6. Personal communication with Mariam Bell, February 4, 1994.

7. Lawson and Chaffin, "False Negatives in Sexual Abuse Disclosure Interviews."

8. Faller and DeVoe, "Allegations of Sexual Abuse in Divorce."

9. Arens and Lasswell, *In Defense of Public Order*, 180.

10. Our use of "methodical" does not necessarily imply *neatly* organized case management. Instead, what we describe as "methodical" is meant to be understood in strictly ethnomethodological terms: the systematic ways in which participants produce and interpret social interaction. Thus, even disorganization and sloppiness are seen as "methodically" ordered social practices in ethnomethodological studies of social interaction.

11. Decision of the Court of Appeals of Georgia, Fourth Division, December 23, 1999, 2.

chapter 1

1. Lombardi, "Custodians of Abuse."

2. Waller's film was shown at the New York International Independent Film and Video Festival, New York City, September 7, 2001.
3. The extreme penalty of loss of visitation, often imposed on protective parents, is especially remarkable because courts in general are extremely reluctant to deprive parents—that is, fathers—of visitation even with children who do not want to see them, unless the visits actually jeopardize the children's health or well-being. See *Mark-Weiner v. Mark*, *New York Law Journal*, August 24, 2001, p. 18, col. 4. Yet protective parents may be denied visits with children who love them.
4. Jacobbi and Wright, "Mothers Who Go to Jail for Their Children."
5. Galtney, "Mothers on the Run."
6. Quindlen, "The Good Mother," p. 15.
7. Fifield and Leshner, "A Child's at Stake."
8. The case was treated in a series of news articles by Bob Port of the *New York Daily News* from May to July 2004; see also Neustein and Leshner, "Courts See Moms as Guilty Till Proven Innocent."
9. Keating, "Children in Incestuous Relationships," pp. 113–114.
10. Faller, "Child Maltreatment and Endangerment in the Context of Divorce."
11. Faller offers a conservative figure. Other researchers have found an even lower rate of false reports of abuse in divorce and custody proceedings. For example, D. P. Jones and J. M. McGraw (1987) reported that only 8 percent of total reports of sexual abuse were "fictitious." A year later, D. P. Jones and A. Seig (1988) reported in an American Bar Association publication the results of another study showing a "false" allegation rate of 20 percent—none of which, however, was determined to be a deliberate fabrication. In their 1992 article, J. M. McGraw and H. A. Smith found that the rate of false reports of abuse was 16.5 percent, a figure that would have been even lower had they removed from their sample the false report that had been made by an adolescent child against a parent.

12. Penfold, "Questionable Beliefs about Child Sexual Abuse Allegations during Custody Disputes."
13. Massat and Lundy, "Reporting Costs to Nonoffending Parents in Cases of Intrafamilial Child Sexual Abuse," p. 384.
14. Heim et al., *California National Organization for Women Family Court Report*, p. iv.
15. *Id.*
16. The report was produced by the Battered Mothers' Testimony Project at the Wellesley Centers for Women, November 2002. The report was authored by Carrie Cuthbert, Kim Slote, Monica Ghosh Driggers, Cynthia Mesh, Lundy Bancroft, and Jay Silverman.
17. Silverman et al., "Child Custody Determinations in Cases Involving Intimate Partner Violence."
18. The report was authored by Dianne Post and Kisa Corcoran.
19. See Rothman and Watson (1990). This report of the Judicial Council Advisory Committee on Gender Bias in the Courts was issued under the auspices of the Administrative Office of the Courts of California. The committee was chaired by Los Angeles Superior Court Judge David M. Rothman and Senator Diane E. Watson of Los Angeles.
20. Winner, *Findings on Judge Michael Dufficy, Commissioner Sylvia Shapiro, and Court-Appointees in Marin County's Superior Court in California*, p. 4.
21. Winner, *Placing Children at Risk: Questionable Psychologists and Therapists in the Sacramento Family Court and Surrounding Counties*, p. 7.
22. Kramer, "Justice Denied," p. 17.
23. Testimony given at a joint New York State legislative hearing sponsored by four committees: Assembly Committee on Judiciary; Assembly Committee on Children and Families; Senate Committee on Child Care; and Assembly Subcommittee on Family Law (March 9, 1989).

24. Nicholson and Bulkley, *Sexual Abuse Allegations in Custody and Visitation Cases*.
25. *American Jurisprudence Proof of Facts*, 3rd ed., vol. 33, section 303, p. 327.
26. *Id.*, pp. 315–316.
27. Men's Equality Now newsletter, September/October 1982. Apart from Armstrong, feminist writer Trish Wilson has looked into the activities of father's rights groups in her article "Will Paternal Paranoia Triumph?"
28. Columnist Mike McAlary ("Court with the Disney Touch") wrote that the judge was "regarded as extremely weak on sexual abuse cases" (p. 5).
29. Testimony given at a joint New York State legislative hearing sponsored by four committees: Assembly Committee on Judiciary; Assembly Committee on Children and Families; Senate Committee on Child Care; and Assembly Subcommittee on Family Law (March 9, 1989), p. 394.
30. Letter from Humberto Middleton, December 20, 1991.
31. Winner, *Divorced from Justice*, p. 133.
32. Kerrison, "Pleas for a Dying Child Go Unheeded," p. 14.
33. Kerrison, "Anguished Mothers Beg for Help," p. 2.
34. Kerrison, "Exposing Dads Who Rape their Children," p. 2.
35. Hanson, "The Sex Abuse Controversy," p. 258.
36. Nance, "Validation Evidence Poses Issue in Child Abuse Cases," pp. 1–2.
37. *Turner v. Turner*, 689 N.Y.S.2d 269 (3rd Dept., 1999). To understand the full impact of that ruling, one should bear in mind that the majority of sex abuse allegations are never substantiated sufficiently to result in a judicial finding of abuse. The nature of the act makes legal proof unusually difficult. This ruling, in other words, could well

mean that a mother who alleges sex abuse—even if her suspicions are understandable—stands a more than even chance of losing custody.

38. The action by the appellate court was all the more striking because such courts are generally highly reluctant to reverse child custody decisions, since these decisions often turn on subjective assessments of the parents, who appear before the trial judge but not the appellate court.

39. 203 F. Supp. 2d 153 (E.D.N.Y., 2002).

40. The conference is now an annual event.

41. See Woodlin, “Newsom Gaining Public Support”; Skipper, “Mom Remains in Hattiesburg Jail”; and Fentress, “Mothers Defy Court, Keep Children.”

42. Keating, “Children in Incestuous Relationships,” pp. 111–112.

43. Galtney, “Mothers on the Run.”

44. Podesta and Van Biema, “Running for Their Lives”; Baer, “G.A. [Georgia] Woman Guides Abused Children toward Havens.”

45. Pennington, *The Judicial Training Act*, p. 5.

46. Carpenter, “Children of the Underground.”

47. Herbert, “Norton vs. Norton,” p. 1.

chapter 2

1. *New York Law Journal*, March 18, 2002.

2. Derdyn, “A Consideration of Legal Issues in Child Custody Contests.”

3. Curran, “The Vulnerability of Court-Appointed Impartial Experts in ChildCustody Cases,” p. 1169.

4. Gardner wrote an article about PAS in 1985, and his first book-length discussion of the “syndrome” appeared in 1987: *The Parental Alienation Syndrome and the Differentiation between Fabricated and Genuine Child Sexual Abuse*. In 1992, Gardner published a guide for practitioners in

recognizing and treating PAS, *The Parental Alienation Syndrome: A Guide for Mental Health and Legal Professionals*.

5. Hanson, "The Sex Abuse Controversy," p. 258.
6. Pennington, *The Judicial Training Act*, p. 10.
7. Brooklyn Citizen Court Monitors, *An Inside Look at the Brooklyn Family Court*, p. 7.
8. Goodhue, Child Protection and the Family Court: A Study of Processes, Procedures and Outcomes under Article Ten of the New York Family Court Act.

chapter 3

1. M. Travers and J. Manzo (eds.).
2. Garfinkel, "The Origins of the Term Ethnomethodology," p. 18.
3. When we speak about "publicly" observable or accountable actions, we are referring to the other interactants in the social setting who, as members of that setting and as part of their routine practical social activities, engage in "publicly" demonstrating an understanding of the social conventions underlying that activity to one another, such as when an actor provides a "return greeting" upon being greeted by another actor. Failure to do so implies that the recipient of the greeting is angry, too busy, or possibly deaf/dumb or too mentally impaired to publicly demonstrate to the other actor his understanding of the social import of the greeting.
4. Garfinkel's 1967 study of the staff at the Los Angeles Suicide Prevention Center shows how members accomplish their inquiries into deaths by taking the "unique" context-dependent features of each case—cases that are by their very nature problematic and equivocal, since the only one who can tell an accurate story is now dead—and deciding "for all practical purposes" what happened by giving reasons that point to, document, instantiate a socially organized pattern of practical activity and

mundane occurrences; and in so doing, reflexively recreate the underlying pattern of commonsense reasoning as it is derived from the particulars of each case.

5. For instance, when mothers needed to ask for advice from the health visitor, they employed certain conversational practices by which they could “display their own putative competence and capacity to cope with the problem for which they seek help and avoid the appearance of ignorance or incompetence which might arise from a simple request for information” (p. 388).

6. The law permits the filing of inconsistent allegations in such petitions. However, in cases like these, the inconsistency goes to the fundamental question of whether the petition ought to be filed in the first place. If the child in question was not abused, there is no legal basis for commencing a family court action. Thus, it is highly unlikely that CPS agencies would taint their petitions with such a basic ambiguity if the petitions were simply intended as factual records of the agencies’ concerns in a given case.

7. According to Meehan, the running record “can be conceptually distinguished from an officer’s ‘mental dossier,’ the term used by Cicourel (1968) to refer to the personal recollection of events or persons . . . [because] it is an occasion for revealing *selected* aspects of one’s mental dossier on an individual, place, or event” (p. 199, emphasis added).

8. Ex parte communications are a breach of judicial ethics. Code of Judicial Conduct, Canon 3A(4). Nevertheless, as the examples in Part II of this book will show, they are amazingly common in family courts.

9. In one case, for instance, a protective mother’s child support was slashed to compensate the father for her supposedly “excessive” litigation—a favorite complaint against protective mothers. This ruling was upheld on appeal despite the mother’s detailed proof that most of the litigation complained of had been prompted by the father, not the mother, and that the father’s claimed expenses were wildly inflated. The appellate judge

simply declared that he would not “reopen” the issue—which had never properly been examined in the first place. The judge’s comments at oral argument showed that he had *heard* about the mother from other court personnel. The oral “running record” provided the basis for his ruling, even though it was contradicted by documentary proof.

chapter 4

1. The practice of attorneys “contemplating” the judge as a guide to how to present their case occurs in other legal matters as well. As discussed in the previous chapter, Lynch (1997) points out that in criminal proceedings “attorneys invoke the judge as an organizational principle that locally governs the presentation of the case at hand . . . they incorporate the judge into the practical organization of the projected cases, and by so doing they realize the judge in their procedures for presenting cases at hand” (p. 103).

2. Appellate brief, January 31, 1989, p. 78. See Kerrison, “Incredible Return of Misogynist a Disgrace,” p. 4.

3. Women are often blamed by judges for any hostility their children show toward their fathers. For instance, in one published case, the record shows that a divorced father (stationed overseas in military service) had a drinking problem, was “frequently violent when intoxicated,” had assaulted his wife, and reportedly became hostile when he came to visit the children, on one occasion “breaking through a storm door to enter the house and breaking into the locked bathroom where the three children were hiding out of fear.” However, even after the children testified that they did not want to be forced to visit their father (who had not attempted to visit them for several years before filing a motion seeking to enforce visitation), a family court judge fined the mother and ordered her to see to it that the children called their father daily, answered all his letters, and visited him for several weeks out of the year overseas. The judge claimed, “Mrs. Dennison [the mother] was doing her share of

badmouthing, so to speak, her former husband Mrs. Dennison has been in there pitching so to speak, against visitation with Mr. Ridley. I do believe that is infectious Clearly, it is defendant [the mother] who has, by overt and covert means, influenced the children.” An appellate court reversed the judge, stating, “We find no basis in the record for his conclusions.” *Ridley v. Dennison*, 689 A.2d 793 (App. Div., 1997). Such reversals appear to be more the exception than the rule.

4. Transcript, October 21, 1986, pp. 6–8; transcript, October 22, 1986, pp. 5–6, 18–23.

5. An official report from a senior assistant state attorney to Connecticut’s state’s attorney (written in October 1998, after the boys had been placed with their father and the mother had been thrown in jail) also concluded that “a reasonable parent in [the mother’s] position in February, 1994, would have believed that J. W. and B. W. had been sexually abused by [the father] and [his sister]” and recites considerable evidence in support of this conclusion. The report goes on to state that “if her boys have been sexually abused,” as the mother reasonably believed, “then surely she, who has seen the system deliver the boys to the abuser while it has sent her to jail, has been one of the most gravely victimized parents ever to seek protection from the legal system.” Unfortunately, as this book demonstrates, her case does not stand alone.

6. Transcript, July 7, 1993, pp. 5–11.

7. Transcript of testimony in chambers, June 9, 1993.

8. Transcript, June 15, 1993; order dated June 15, 1993, pp. 1–2.

9. Affidavit supporting CPS petition, August 10, 1983. The affidavit also states that the infant’s seven-year-old sister had personally seen the father touching the infant’s genitals “for an extended period of time.”

10. Affidavit of mother, July 25, 1986, p. 8.

11. *Id.*

12. *Id.*, p. 12.

13. *Id.*

14. Mother's affidavit, July 25, 1986, p. 10.
15. Transcript, December 23, 1997, p. 23. In 1999, New Jersey's Appellate Division reversed another family court judge for removing a child from her mother because the mother would not "change her subjective view of [the father's] prospective visitation with [the parties' daughter]," which she feared. The court stated that judges in custody and visitation matters "cannot reasonably require the parties to change their opinions and forsake their subjective fears. The court has the power to control and punish conduct, not thought." *P.T. v. M.S.*, 738 A.2d 385, 399 (App. Div., 1999). As discussed in other sections of this book, such appellate review of family court actions is rare, and it remains to be seen whether the Appellate Division's warning will have any effect on family courts in New Jersey. See below for a description of a still more recent New Jersey case in which a mother's children were removed from her without the evidentiary hearing clearly required by New Jersey's appellate court.
16. Jeremiah B. McKenna, report to New York State Senate Committee on Crime and Correction, October 31, 1987, p. 1.
17. *Id.*, p. 1.
18. Testimony of the mother before the New York State Assembly Judiciary Committee, May 18, 1989.
19. A few (published) examples of such cases, drawn from a single state (New York), include the following: *Gagliardo v. Gagliardo*, *New York Law Journal*, January 1, 1989, p. 28 (the mother was ruled "unfit" to be the custodial parent because she prevented the father's visits due to sex abuse allegations that were ultimately ruled unfounded); *F.N. v. F.A.*, *New York Law Journal*, July 3, 1989, p. 29 (the father was awarded sole custody after the mother took the child out of state, believing the child to have been sexually abused by the father; an expert witness testified merely that there was no "direct evidence" of abuse, not that the mother had acted in bad faith); *Turner v. Turner*, 689 N.Y.S.2d 269 (3rd Dept., 1999) (the father was awarded sole custody because the

mother had made a good-faith child abuse allegation against the father that was ruled unsubstantiated; the court claimed that regardless of the mother's motives, her allegation rendered her unfit for custody because the charge had caused the temporary suspension of the father's visitation with the child; the court said the mother's "behavior casts significant doubt upon her capacity to provide for the emotional and intellectual development of the child"). Letter from Attorney Steve Mandel to the special prosecutor's office, June 20, 1990.

20. Pagnozzi, "Mom Was Trying to Help Her Kids, So Why Is She the One on Trial?," p. 13.

21. Code of Judicial Conduct, Canon 3A(4).

22. Attorney affirmation, Appellate Division, July 24, 1986, p. 8.

23. Sworn affidavit, July 25, 1986, p. 14.

24. This statement was part of an unsuccessful motion for a stay of the order changing custody. What makes the judge's order particularly astounding is that New York law does not provide for a change of child custody without a full court hearing at which both parents (and anyone else with actual custody of a child) are given an opportunity to appear and be heard, whereas in this case the judge transferred the child to the father without a hearing, let alone any advance notice to the mother. New York Domestic Relations Law § 75-e; see *Priscilla S. v. Albert B.*, 102 Misc. 2d 650, 424 N.Y.S.2d 613 (1980). Family courts often seem to overlook such questions of due process.

25. Court transcript, June 15, 1993.

26. Memorandum decision, February 22, 1994, p. 2.

27. *Id.*, p. 6.

28. Decision of January 30, 1995, p. 5.

29. Psychologist's report, February 28, 2002.

30. Attorney's affirmation in support of the mother's motion for greater visitation rights with the children, July 2003. No factual or legal opposition to these papers was filed by CPS or any party to the case.

31. *New Jersey Division of Youth and Family Services v. J.Y.*, 352 N.J. Super. 245, 800 A.2d 132 (App. Div., 2002).
32. Report of the State of New York Commission on Judicial Conduct, Matter of Judge Louis Grossman, November 20, 1984, pp. 1–9. Subsequent quotations are taken from this report.
33. Determination, State of New York Commission on Judicial Conduct, November 20, 1984, p. 7.
34. *Id.*, pp. 7–8.
35. *Id.*, pp. 5–6.
36. Dr. Arthur Green is described at length in Chapter 7.
37. There is no record that the family court judge even forwarded these transcripts to the appellate court, as required by New York law; New York Family Court Act § 664(b), Civil Practice Law & Rules § 4019; see *Fleishman v. Walters*, 40 A.D.2d 622. In theory, an appellate court should not accept a family court custody ruling if it is based more on private interviews than on evidence taken in court; *People ex rel. Kessler v. Cotter*, 285 a.d. 206. In practice, appellate courts rarely give family court decisions close scrutiny.
39. Transcript of hearing, July 13, 1989, pp. 2–6.
40. Interview on radio program *New York & Company*, WNYC (New York, New York), November 30, 1989.
41. *Lincoln v. Lincoln*, 24 N.Y.2d 270.
42. Letter of Dr. Robert Geffner, June 5, 1999.
43. *State ex rel. Rich v. Bair*, 83 Idaho 475, 365 P.2d 216 (1961).
44. *Kinsella v. Kinsella*, 696 A.2d 556 (1997) (New Jersey Supreme Court), quoting with approval the 1991 report of a task force of the American Psychiatric Association. The court's opinion reviewed similar statements from the courts of other states.

45. Memorandum decision, January 29, 1999. As further evidence of the anger that motivated the judge, the decision contains derogatory statements about the mother that are unsupported by the record.
46. Written statement of Robert Geffner, PhD, June 1999. Dr. Geffner wrote that he still thought disclosure might violate ethical guidelines and even federal law. Evidently that was less important to the judge than the desire to control—or punish—the protective mother.
47. Mother's complaint to the New York State Grievance Committee, March 5, 1999, p. 2.
48. *Id.*
49. Nassau County Medical Center report, June 14, 1993.
50. Two other mothers whose cases had been before Judge Deutsch reportedly committed suicide. See Mike McAlary, "Court with Disney Touch," p. 28; and Viva, "Women and Children Last," p. 115.
51. Testimony before New York State Senate, July 13, 1989, p. 1.
52. Jayakar testimony, May 18, 1989, p. 20.
53. *Id.*, pp. 21–22.
54. *Id.*, p. 22.
55. *Id.*, p. 23.
56. Transcript, November 29, 1990, p. 17.
57. Psychiatrist's report, November 13, 1990.
58. Transcript, November 29, 1990, p. 2.
59. *Id.*, p. 5.
60. *Id.*, p. 6.
61. *Id.*, p. 16.
62. *Id.*, p. 3.
63. *Id.*, p. 7.
64. Decision of May 1993. Despite the relatively cautious wording of this decision, its real meaning was perfectly obvious to other judges

who inherited the case. An appellate judge would describe the earlier decision this way: “[The judge] questioned her motivations, her credibility and her mental stability. It is clear that he did not believe any part of plaintiff’s allegations of abuse involving the daughter. His findings were based upon a fully developed record following an extensive evidentiary hearing.” (Memorandum decision, March 28, 1995.) This confirms that the real “record” of a case like this is not the official legal one, for as a matter of fact the abuse allegations had never been resolved by the court; they were withdrawn when the father agreed to forgo all contact with the girl. Nor did the earlier judge ever actually conclude that the charges had been false. The “fully developed record” so calmly referred to by the appellate judge simply did not exist in any legal sense. The “record” had been written, so to speak, between the lines.

65. Decision of June 15, 1993, p. 2.

66. Decision of December 18, 1997.

67. Appellate brief, September 1998, and reply brief, October 5, 1998. Remarkably, none of these points were denied by the father’s attorneys. Their brief continued the pattern of burying the mother under hostile epithets; they scarcely even attempted to justify the (by then) familiar labels. They called the mother “litigious” even though they did not deny that it was the father, not the mother, who had insisted on litigating the issues raised in the appeal. In another flourish (unadorned with facts), they complained that the father’s income “was being consumed by attorney’s fees caused by a vindictive ex-wife, who will not stop.” Yet they left completely unchallenged the mother’s showing that nearly three-fifths of the father’s claimed legal expenses could not possibly be attributed to her actions.

68. Memorandum decision, January 29, 1999.

69. The same judge, in an earlier opinion, had actually claimed that the trial judge was the real victim—he castigated the “machinations” of the mother’s attorneys as they struggled to bring her children home and

said their “disrespect” for the trial judge who had taken the children away without a proper hearing was “appalling” (Memorandum decision, January 30, 1995).

70. Neustein, Burton, and Quirk, “Concerning the Plight of Children in Cases of Parental Abuse,” p. 19.

71. Motion for recusal, March 22, 1996.

72. Personal communication of the mother’s lawyer to Amy Neustein, July 3, 2003.

73. Testimony of Julia Heit, Hearing before the Subcommittee on Select Education, Committee on Education and Labor, US House of Representatives, 102nd Congress, Second Session, April 20, 1992, pp. 73–74.

74. These hearings were sponsored by four committees: Assembly Committee on Judiciary; Assembly Committee on Children and Families; Senate Committee on Child Care; and Assembly Subcommittee on Family Law. Hearing dates were March 9 and May 18, 1989.

75. Hemphill, “The Agony of Yacov Riegler,” p. 6.

76. Memorandum of Jeremiah B. McKenna to the New York State Senate Committee on Crime and Correction, April 13, 1987.

77. Trial testimony of Dr. Sidney Fein, May 8, 1989, p. 8.

78. Nance, “Validation Evidence Poses Issue in Child Abuse Cases,” p. 1.

79. University of California, Davis, Medical Center, Sacramento, July 7, 1996, pp. 3–4.

80. Mother’s formal complaint to the presiding judge overseeing the trial court, January 28, 2002, p. 1.

81. Transcript, February 20, 1998, p. 31.

82. Judge’s statements, reading from a letter written by the court-appointed visitation supervisor, transcript of February 20, 1998, p. 38.

83. Such orders are in fact quite common in protective mother cases. The mother—though not accused of any sort of violence—is precluded from important ceremonies, such as religious confirmations or school graduations, as part of her isolation from her child.

84. Transcript, April 25, 1997, p. 110.

85. Transcript, October 31, 1996, pp. 3, 9–10. The judge’s mention of “witchcraft” here refers to statements he made earlier that day about the notorious Salem witch hunts: “History tells us that the witchcraft fright that went through Salem, Massachusetts, was hysterical and, as we know, unfounded on any factual basis” (p. 3).

86. Transcript, November 1, 1996, p. 59.

87. Transcript, February 20, 1998, pp. 11–12.

88. *Id.*, p. 16.

89. *Id.*, p. 34.

90. *Id.*, pp. 32–33.

91. *Id.*, p. 16.

92. *Id.*, p. 12.

93. One protective mother we spoke with was surprised that in her custody proceedings involving sex abuse allegations, unlike routine custody proceedings that do not involve abuse allegations, the court and its auxiliaries became so entirely focused on litigation issues (for instance, the mother’s presumed making of a false report of abuse to the child protective service agency or the police) that they never even inquired into whether or not she was the primary caretaker of the child. The mother, a busy professional, had her own mother care for her child and feared being asked questions about basic caretaking matters such as the child’s eating and sleeping habits. To her surprise, these questions never came up; the proceeding seemed to shy away from nurturing concerns altogether.

94. While in New York such courts are called “Supreme Court,” other states will have a different name for courts that handle divorce and cus-

tody matters. For example, they may be called Circuit Court, District Court, Superior Court, Domestic Relations Division of the Circuit Court, and so forth, wherein each state individually determines the name of its courts. However, when domestic violence and child abuse matters are at stake, the case is usually heard in a different court than those that handle divorce, maintenance, child support, and custody matters. Depending on the state, such courts may be called Family Court, Juvenile Court, Child Protection Court, and so on. In this book we are focusing on the latter, as that is where child safety matters are heard. We provide a sociological analysis of such courts and show how, sometimes, their unique mode of operation and their concomitant biases against mothers have spilled over into the other courts that do not as a rule handle child abuse/neglect matters.

95. In carefully reading supreme court custody and visitation decisions, which are generally not sealed as they are in the family courts, we were astonished to see judges flaunting names of witnesses who occupy a high rank in the hierarchy of community life. It became plainly obvious to us that judges had accorded undeserved weight to such witnesses—whose affluence and visibility as donors to major charities and as contributors to political coffers made them stand out—because their first-hand knowledge of the family matter before the court was *de minimis*. Ironically, such decisions read more like the social columns in a tabloid newspaper rather than court decisions on the seriousness of child custody and visitation matters that the court had been asked to adjudicate.

96. Brief of Plaintiff-Appellant (protective mother) to Supreme Court State of New York, Appellate Division, Second Department, May 30, 2022, pp. 9, 32, 33–41.

97. Family courts habitually maintain an atmosphere of subjugation of mothers redolent of a penal setting or worse. As such, there are usually two to three bailiffs present at all times, ready to handcuff a mother in an instant if a judge “deems” a mother to be out of control, whether

she is or not. Here is a brief scenario of what happened in a Brooklyn courtroom: A mother was before a family court judge but without counsel because she couldn't obtain counsel to represent her, no matter how hard she tried. The reason was that the opposing counsel was fierce, and all of the attorneys were afraid to go up against a very powerful politically-connected lawyer (with strong ties to Brooklyn's Orthodox Jewish community). In fact, this family law attorney, who held prominent positions in legal organizations, was reputed to file grievances at the Brooklyn Bar Association against his opposing counsel whether it was warranted or not. So, the mother came to court without representation but brought her father, who was an Orthodox Jewish rabbi and a retired business law professor. Given his age, the rabbi no longer had legal connections as most of his colleagues had already retired. When the court proceeded to hear motions from the other side while the mother was without counsel, her father raised his hand to ask the judge if *he* could represent her for the day, although his expertise was not family law and he had much preferred to have a family law specialist handle his daughter's case. What happened next defied logic. Immediately the judge summoned two bailiffs, each forcefully grabbing the rabbi under his arms. Startled by this sudden attack, the rabbi lost his balance and fell to the courtroom floor. The daughter stretched out her hand to help her father get up, but the judge motioned to his bailiffs to proceed. The rabbi was dragged out of the courtroom on his backside and shoved into a corner in a packed waiting room. He would suffer a muscular-skeletal injury and eventually need a permanent rod placed in his hip. This shocking and appalling story was reported in a feature piece on family courts in *New York Woman*. Across the banner of the magazine's cover read an ominous headline: "The Horror of Family Court." The article was aptly titled "Women and Children Last: How the Family Court Serves to Punish the Very People It Was Created to Protect."

98. The mother's counsel noted (uncontested) the father's cocaine use on the record: "This Court recalls that he [the father] failed two positive

drug tests for cocaine.” Transcript of Supreme Court of the State of New York, County of Nassau, June 16, 2021, p. 9.

99. Log produced by mother, from September 20, 2020 to March 12, 2021.

100. Letter of therapist to one of the authors of this book, June 21, 2021.

101. The terminology used for the court-assigned lawyer representing the child has changed over time, and it is mostly influenced by the region of the country where the litigation is taking place. Four or five decades ago when the courts began to assign lawyers (or sometimes advocates who were not attorneys) to represent children in child custody proceedings, there were two distinct terms, each bearing a different meaning: guardian ad litem (usually an attorney, but not necessarily, appointed by the court to be responsible for the child’s welfare by ensuring that the child’s “best interests” are upheld), and law guardian (a lawyer appointed by the court to “advocate” for their client’s position by relaying the child’s wishes to the court even if those wishes are contrary to the child’s best interests). At that time, there was much debate over which approach was better? Whether the person appointed to represent the child should relay to the court the child’s “wishes” or, alternatively, represent to the court the child’s “best interests” even if this required, at times, ignoring the child’s wishes. Over time, the court-appointed representative for the child would communicate less and less of the child’s wishes (some hardly even spoke to the child) or advocate for the child’s best interests. Instead, they began to argue specifically for fathers who were accused of alleged sexual abuse. The terms changed in certain regions of the country to “Attorney for the Child” (AFC), which has become a commonly used term in New York, Texas, and elsewhere in the past ten to fifteen years. In practice, although the definition of an AFC is to serve as a legal advocate for the child, by representing to the court the child’s “wishes” regarding custody and visitation, we have found that AFCs rarely relay the child’s wishes to the court. Instead, they be-

come zealous advocates for allegedly abusive fathers and have often suppressed evidence of sexual abuse from the court. While AFC is a popular term, some states, however, still use some of the older nomenclature. In California, for example, the common terminology used to describe the court-appointed representative for the child is “minor’s counsel.” On the whole, such legal representatives, no matter what they are called, have disgracefully abandoned their responsibility to protect the “best interests” of the child or the “wishes” of the child to be protected from the allegedly abusive parent—both of which ensure the child’s welfare. In Family Court or in Juvenile Court, as opposed to Supreme Court, taxpayer dollars (from state and federal funds) often cover the costs for the attorney appointed to represent the child.

102. Transcript of Supreme Court of the State of New York, County of Nassau, June 16, 2021, pp. 7–8.

103. *Id.*, pp. 10–11.

104. *Id.*, p. 12.

105. *Id.*, p. 16.

106. Brief of Plaintiff-Appellant (protective mother) to Supreme Court State of New York, Appellate Division, Second Department, May 30, 2022, p. 1.

107. *Id.*

108. *Id.*, pp. 1–2.

109. Report of Supervisor to the Nassau County District Court, October 13, 2020, p. 2.

110. Brief of Plaintiff-Appellant (protective mother) to Supreme Court State of New York, Appellate Division, Second Department, May 30, 2022, pp. 5–6.

111. *Id.*, pp. 7–8.

112. Transcript of County Court of the State of New York, County of Nassau, October 7, 2021, p.8.

113. *Id.*, p. 18.

114. Letter from mother's therapist, Nassau County Counseling Services, May 23, 2022, pp. 1–2.

115. Letter from mother to one of the authors, July 16, 2022, p. 1.

116. Shortly after the mother filed an appellate brief with New York's Appellate Division, Second Department challenging the judge's rulings against her, attorneys for all parties met with the judge for a case management conference. As a result, the mother was pressured into dropping her appeal that she had recently filed with the Appellate Division, 2nd Department (NY), even before the appellate division had a chance to review her case. She was told by her counsel that if she didn't withdraw her appeal she would be saddled with supervised visitation for an indefinite amount of time. Given the prohibitive costs of supervised visitation, the mother acquiesced to the pressure presumably coming from the bench and withdrew her appeal post-haste. Alas, the costly supervision would continue for twenty-five months after the mother withdrew her appeal. So, the injustices of the trial court were never scrutinized by the Appellate Division. And the mother was still subjected to the undeserved hardship of paying for supervised visitation in order to see her children. Unfortunately, this is not the first time we have heard of judges leveraging the mother's right to appeal the trial court's decision by enforcing (or continuing to enforce) severe financial hardship on the mother and then falsely promising to relieve the hardship once the appeal is dropped.

chapter 5

1. The family law literature often uses the terms “law guardian” and “guardian ad litem” interchangeably, although in fact there are some differences between the two. Simply put, a guardian ad litem is an attorney or a layperson appointed by the court to protect the interests of

a minor child (or incompetent) involved in litigation. A law guardian is an attorney appointed to act as the lawyer for a minor child in a divorce or child abuse case—that is, to represent the child on the assumption that the child’s interests may not be adequately represented by either of the parents. We use the term “guardian ad litem” only when referring to published articles or case records where that specific term has been used. Otherwise we refer to all court-appointed representatives for minor children in family court litigation as “law guardians.”

2. Lidman and Hollingsworth, “The Guardian Ad Litem in Child Custody Cases,” pp. 255, 256, n. 4.

3. The National Center on Women and Family Law (1982–1996), operating under a federal grant from the Legal Services Corporation, served as a legal research and training center for women and family law.

4. *Guarding Our Children: A Review of Massachusetts’ Guardian Ad Litem Program within the Probate and Family Court* (March 2001).

5. Ducote, “Guardians Ad Litem in Private Custody Litigation.”

6. 42 U.S.C.S. § 5106a.

7. Lidman and Hollingsworth, “The Guardian Ad Litem in Child Custody Cases,” p. 306.

8. Sometimes, in fact, a family court judge will rein in a law guardian whose advocacy veers outside the definition of their role, but this is more the exception than the rule. In one Wisconsin case we studied, a law guardian failed to persuade the judge to give a father found to have engaged in “inappropriate [sexual] conduct” greater visitation rights than the evidence justified. In that case, the judge had speculated to the lawyers, on the record, that he might release the father from supervised visitation at some *future* date. The law guardian then directly confronted the judge, seeking a “specific time” for the removal of those restrictions. (Significantly, it was not the father’s lawyer who made this aggressive request on the father’s behalf but the lawyer for the children

allegedly abused by him.) The judge, however, did not give way to the law guardian's pressure. Rather, he qualified his earlier statement:

I did not set a specific time for that because I think that depends upon insofar as a counselor or therapist might be able to recommend it, I think that depends in large part upon the successful completion of therapy, whatever that term might mean, and that could be a matter of a short period of time or a more lengthy period of time. I really don't know. (Transcript of oral decision, November 20, 1992, p. 31)

The mother told Amy Neustein that she had feared losing custody of her sons, despite the serious allegations of abuse, because of the extraordinary "camaraderie" between the law guardian and the children's father, who appeared pro se throughout a two-week trial. The law guardian not only zealously cross-examined the mother's witnesses but called—as her own witness—a CPS caseworker to testify that the mother had "neglected" her children by making "false" charges of sexual abuse. That "camaraderie" did not pay off for the father in this particular case.

9. Ethnomethodologists Harold Garfinkel and Egon Bittner (1967) first introduced the concept of "contractual" uses of records—that is, records with "projected external careers" (to be used outside the immediate organizational setting, as opposed to their internal purposes). In their 1967 study of outpatient clinic records ("Good Organizational Reasons for Bad Clinic Records"), Garfinkel and Bittner offered a new way of analyzing how, unlike records for internal use, official records are produced and used in organizational settings. As an example, they pointed to how "the contents of clinic folders are assembled with regard for the possibility that the relationship may have to be portrayed as having been in accord with expectations of sanctionable performances by clinicians and patients" (p. 199).

10. Court transcript, July 7, 1993, pp. 6, 13.

11. Letter dated July 15, 1993.

12. Letter to law guardian dated August 25, 1993.
13. Application for ex parte modification of physical custody filed by law guardian, February 14, 1994.
14. Transcript, November 20, 1996, pp. 10–12. It is, alas, typical of family court procedure that an earlier judge had not hesitated to remove custody from the mother in *her* absence—even though no evidence ever suggested the mother posed any threat of harm to the children. But the mother could not get a court to consider a temporary removal of custody from her ex-husband, even though there was an imposing mass of evidence of abuse, *plus a doctor's letter indicating an emergency*, until all attorneys—including the ex-husband's attorney—were “prepared.”
15. Transcript, November 20, 1996, pp. 11–13.
16. Transcript, February 16, 2001; order, February 21, 2001.
17. Order (District of Columbia), February 21, 2001.
18. Transcript, November 8, 2000, pp. 29, 35.
19. Letter, June 22, 2000, pp. 2, 4–5.
20. Caseworker memorandum, February 8, 2001, p. 4.
21. Evaluation, p. 9.
22. Caseworker memorandum, p. 5.
23. Transcript, November 8, 2000, p. 43.
24. The caseworker's memo contains other false statements that may have originated with the GAL, although her memo does not directly say so. For instance, the memo states (p. 3) that the court-appointed psychologist in Maryland found that the mother “has no rational thoughts at this time,” that she “is getting worst [sic],” that her “disorder is hard to treat,” and that she had “fired 4–5 of her attorneys.” *Not one* of these statements actually appears in the psychologist's testimony.
25. Strictly speaking, the “law guardian” in this case was an agency, the Legal Aid Society of New York, Kings County. The references to the “law guardian” here apply to the supervising attorney assigned to the case,

who indeed personally handled nearly all of the litigation on behalf of the agency.

26. Transcript, March 17, 1987.

27. Appellant's brief, January 31, 1988, pp. 20–21; affidavit of Marjori Schecter, November 13, 1992; transcript of state legislative hearing, May 14, 1993, pp. 20–32.

28. Fifield and Leshner, "A Child's at Stake."

29. Letter of law guardian, June 8, 1993.

30. Closing argument of law guardian, June 9, 1993, pp. 168–169.

31. Transcript, July 27, 1993.

32. Attorney for [children's] position re: custody/visitation, August 11, 1993.

33. Letter of December 4, 1995 from Dr. Lenore Walker.

34. Affidavit of law guardian in support of motion for Order to Show Cause, signed December 16, 1993 (entered December 23), p. 2.

35. The Children's Hospital, Child Advocacy and Protection Team, October 1, 1991, pp. 2, 4–5.

36. *Id.*, p. 4.

37. Humana Hospital Aurora, September 20, 1991, p. 1.

38. The Children's Hospital, Child Advocacy and Protection Team, October 1, 1991, p. 6.

39. Law guardian's closing argument, February 19, 1991, p. 3.

40. Verified motion for payment of expert witness consultation fee, November 6, 1989, p. 2.

41. Decision of the Kentucky Court of Appeals, dissenting opinion of Judge Michael O. McDonald, March 17, 1995, p. 33.

42. *Id.*, pp. 30–31.

43. As noted earlier in this book, “ex parte” contact between a judge and one of the attorneys in a case, without the others’ knowledge and consent, is a breach of legal and judicial ethics (emphasis added).
44. Dissenting opinion, p. 33.
45. *Id.*, p. 34.
46. *Id.*, p. 33, n. 7.
47. Bennett, “Book Citing Hardin Case Stirs Debate,” p. B1.
48. Judge McDonald later gave permission to have his dissenting opinion published in full in the popular press. See Winner, *Divorced from Justice*, appendix VI, pp. 270–280.
49. Bennett, “Controversial Case Can’t Be Cited Later,” p. B1.
50. Appellate decision, p. 37 (emphasis added).
51. Mother’s complaint to the New York State Grievance Committee, March 5, 1999, p. 2.
52. Grace Moran, chief counsel for the State of New York Grievance Committee for the Tenth Judicial District, March 23, 1999.
53. Mother’s complaint to the New York State Grievance Committee, March 5, 1999, p. 1.
54. *Krause v. Krause* (Docket No. C 02–5277 JSW, N.D. Cal.).
55. We have not located any cases in which children, having reached the age of majority, were permitted to sue their former law guardians for legal malpractice. However, some case law in New York suggests that such a suit might be possible if the law guardian is clearly incompetent or fails to act in good faith. See *Matter of Jamie TT*, 191 A.D.2d 132, 599 N.Y.S.2d 892 (3rd Dept., 1993); *Marquez v. Presbyterian Hospital et al.*, Index No. 7583 (Sup. Ct., Bronx Co.). Even this hint of possible legal liability for bad law guardians appears to be the exception rather than the rule.
56. Krause, “Letting Children Speak for Themselves,” p. 4.
57. 537 A.2d 1227, 109 NJ 396.

58. Personal communications with the mother from November 1993 to December 1999.

59. Agus, "A Mother's Cry from the Grave," p. 8.

60. Petition of law guardian, October 5, 1992, p. 2. The law guardian's petition claimed that her inability to contact the mother that day posed an "imminent risk of harm" to the child. This bit of nonsense worked in family court; when faced with a *real* court—the Appellate Division—the law guardian did not even bother filing papers in opposition to the mother's arguments seeking to vacate the order (*New York Law Journal*, November 30, 1992, p. 31, col. 3). As we have seen, family courts are a breed apart, and law guardians know it. Unfortunately, law guardians are rarely subjected to higher court review.

61. This mother was not the only one to complain about this particular law guardian. We have examined three other cases involving her. In one case, the law guardian allegedly threatened the mother with prosecution for "neglect" if she did not stipulate to a custody award to the father after a controversial expert (Dr. Arthur Green) made that recommendation. The mother fled with her child. In the second case, the mother, who became a vocal activist, was "arrested, jailed, handcuffed behind her back and attached to the wall of the cell" for "several hours" for bringing her daughter to a hospital where the doctors found serious evidence of sexual abuse (Agus, "Standing Fast to Get Her Kids Back," pp. 4, 34). In the third case, despite a report of sexual abuse by the father, the mother lost custody and all visitation rights. When she died of heart failure at forty-six, her parents were denied all access to their granddaughter.

62. Berger, "Three Deaths," p. 25.

63. Report of Virginia Strand, PhD, November 27, 1992, p. 3.

64. Sherman, "No Choice," p. 8.

65. Buckmaster, **Let My People Go*, p. 13.

66. Agus, "A Mother's Cry from the Grave," p. 8.

67. United States District Court, Northern District of California, July 13, 2015, p. 2.
68. Order of Probation, Probation Order Commitment Form, December 6, 2007.
69. Superior Court of California, County of Contra Costa, Complaint—Misdemeanor, March 15, 2018.
70. Marin General Hospital (Novato Community Hospital) Emergency Department Reports, February 7, 2011, p. 1.
71. *Id.*
72. *Id.*, p. 2.
73. Pediatrician's report, March 7, 2011, p. 1.
74. Therapist's letter to the mother, January 19, 2011, p. 1.
75. Medical expert's report to the Contra Costa County Sheriff's Office, February 14, 2011, p. 2.
76. *Id.*, p. 3.
77. *Id.*, p. 4.
78. *Id.*, p. 4.

Chapter 6

1. Hearing transcript, Subcommittee on Select Education, Committee on Education and Labor, US House of Representatives, 102nd Congress, Second Session, April 20, 1992, p. 85.
2. *Id.*
3. A typical regulation in New Jersey specifies that one of the purposes of CPS is to “[p]reserve and strengthen family life”: New Jersey Administrative Code 10:133C-2.3(a)(2); N.J.S.A. 30:4C-1(a). This principle means that family ties must be encouraged and preserved to the greatest extent possible under the circumstances of a given case.
4. See transcript of decision, June 22, 2001, p. 14.

5. Personal communication with one of us.
6. Transcript, March 17, 1987.
7. The study was funded by a grant from the National Center on Child Abuse and Neglect (grant # 90-CA-1519).
8. Personal communication between Amy Neustein and Professors Marta Lundy and Carol Rippey Massat, January 21, 1994.
9. Personal communication between Amy Neustein and Dr. Lundy, July 17, 1996.
10. The published results of this study can be found in Massat and Lundy, "Reporting Costs to Nonoffending Parents in Cases of Intrafamilial Child Sexual Abuse," and Massat and Lundy, "Service and Support Needs of Non-Offending Parents in Cases of Intrafamilial Sexual Abuse." In 1996, Dr. Massat and Dr. Lundy invited Amy Neustein to lecture at Jane Addams College of Social Work on the protective parent problem.
11. Letter, February 8, 1994, p. 2.
12. Forrest, "Children Die," p. 4.
13. Harman affidavit, October 19, 1992, pp. 1-2.
14. Letter dated January 24, 1996, pp. 1-2.
15. Memorandum of social worker, February 8, 2001.
16. *Id.*; psychological evaluation, November 21, 2000, p. 9; letter of psychologist summarizing his review of the transcript of children's interviews at Child Advocacy Center in June-July 2000 (undated), pp. 2-3.
17. Letter of therapist, June 22, 2000.
18. Temporary Custody Order (Maryland), February 21, 2001.
19. Transcript of deposition, June 6, 2001, pp. 147, 158-159.
20. Family Court Act § 1012(f).
21. C.S.R. § 19-3-102(1).
22. California Penal Code § 11165.2.

23. See *In re E.H.*, 718 A.2d 162 (D.C., 1998).
24. Family Court Act § 1027(b).
25. C.R.S. § 19-3-405(2).
26. Code of Virginia § 16.1-252(E).
27. In the case of a Brooklyn, New York, mother, the judge instructed CPS to charge the mother with neglect because she had changed therapists for her sexually abused children without first seeking the permission of the court. Even if her actions were in violation of a court order (for which contempt remedies could have been sought), her actions certainly did not qualify as “neglect” under the statute. See Pagnozzi, “Mom Was Trying to Help Her Kids.”
28. Personal communication with Michael Leshner, May 1997.
29. New York State Department of Social Services, October 4, 1995, pp. 1–2.
30. Discharge summary, November 21, 1994, pp. 1–2.
31. Neglect petition, May 31, 1996, p. 3 (emphasis added).
32. *Id.*
33. The source of these claims was, in fact, the DA’s counselor, who in turn heard them from a social worker who had met the mother at the battered women’s shelter and (according to the mother) had pressured her to place her son with a foster care agency with which the social worker was professionally connected. When asked by a journalist if she had diagnosed the mother as mentally ill (with homicidal tendencies), the social worker admitted that she was not qualified to make any such diagnosis. But case notes clearly show that she did make it—and told the counselor so (CPS case summary notes, May 30, 1996; counselor’s notes, May 30, 1996). So, the petition against the mother was the outcome of an improper diagnosis, conveyed to a judge in the form of double hearsay. But as usual in family court, agency chatter was accepted as truth until long after the child was removed from his home.

34. We describe in Chapter 3 how family courts rely on the “running record,” which is built up by and shared with “insiders,” at key points in the legal decision-making process. The “running record” may well be based on claims or beliefs that are not grounded in fact.

35. CPS case summary notes, November 15, 1995.

36. Affidavit for Ex Parte Custody Order, February 28, 1989, pp. 1–3.

37. Addendum to affidavit for Ex Parte Custody Order, March 1, 1989, p. 1. Ironically, CPS evidently had a budget for the costs of foster care placement but not for proper monitoring of visits. Unfortunately, CPS’s choice in this case is similar to many others made regularly by CPS agencies across the country. Investigative reporter Richard Wexler found that CPS agencies readily place children in foster homes rather than provide preventive services aimed at keeping families together. In *Wounded Innocents*, Wexler argues that the reason for this is that “the orientation of practitioners and the financial incentives . . . encourage taking children away from their parents” (p. 250).

38. Addendum to affidavit for Ex Parte Custody Order, March 1, 1989, p. 2.

39. Published proceedings of the congressional hearing before the Subcommittee on Select Education, Committee on Education and Labor, US House of Representatives, 102nd Congress, Second Session, April 20, 1992, p. 35.

40. Testimony of child, December 9, 1986. The child testified that her father “stuck his finger in my gina [sic] and my bottom and he cut me with a knife.”

41. Written testimony, submitted to Subcommittee on Select Education, *Congressional Record*, April 15, 1992, pp. 18–21.

42. Neglect petition, August 25, 1987, p. 2.

43. *Id.*

44. Hearing before the Subcommittee on Select Education, Committee on Education and Labor, US House of Representatives, Congressional Record, April 20, 1992, p. 23.
45. *Id.*, pp. 22–23.
46. *Id.*, p. 36.
47. Medical report, March 8, 1988, p. 2.
48. Testimony before the Subcommittee on Select Education of the Committee on Education and Labor, US House of Representatives, 102nd Congress, Second Session, April 20, 1992, p. 35.
49. Petition, February 11, 1993, p. 3.
50. Police report, June 27, 1993.
51. Neglect petition, June 28, 1993.
52. Agus, “Standing Fast to Get Her Kids Back.”
53. *Id.*, p. 34.
54. Part of this mother’s activism was directed at another case, involving the same judge and law guardian as her own. We discuss the tragic ending of that case—the despairing mother killed herself and the child—elsewhere in this book.
55. Petition, September 18, 1986.
56. Memo from special counsel to New York State Committee on Crime and Correction, April 13, 1987, pp. 7–10.
57. Transcript, October 22, 1986, pp. 24–26.
58. *Id.*, p. 26.
59. *Matter of Marie B.*, 62 N.Y.2d 352, 477 N.Y.S.2d 87 (1982).
60. Transcript, October 17, 1986, pp. 58–60.
61. Transcript, March 17, 1988, pp. 38–39.
62. Physician’s affidavit, June 10, 1998, p. 2; trial transcript, May 8, 1989, p. 8.
63. Transcript, May 8, 1989, pp. 8–10.

64. The National Child Abuse and Neglect Data System, which collects data from all fifty states—and prepares an annual report for the Children’s Bureau for the Administration on Children, Youth and Families of the US Department of Health and Human Services—has studied this problem for thirteen years. The findings of prior years have been more or less consistent with those in the 2002 report, which is the most current.

65. McDonald, *Child Maltreatment* 2002, p. 51.

66. Neustein and Leshner, “The Other Side of Child Neglect Charges,” 115.

67. *Id.*

68. We have found that when mothers are deemed by an Appellate Court as an “unaggrieved” party, which basically forecloses access to appellate review of what had transpired in their case in the trial court below, it is often because family courts and CPS agencies have engaged in the use of specific legal stratagems to shield their malicious actions from review by a higher court. One example is the trial court’s “dismissal” of the neglect/abuse petition (but not the charges) after CPS’s long prosecution of the protective mother for neglect or abuse (which will often last up to twenty-four months, and sometimes longer). In such cases, mothers, seriously prejudiced by the neglect/abuse charges against them, which have often resulted in their losing custody of their children to their allegedly abusive ex-spouse or partner, are unable to seek the review of a higher court because of the lower court’s dismissal of the petition. Another example is CPS’s reducing of a neglect/abuse charge brought against a protective mother to “not established”—a lesser charge but one that still mars the mother’s record. So, once the petition is “dismissed” or the case against the mother is “watered down” from a finding of “neglect” or “abuse” to a finding of “not established” (the latter of which is still not deemed “unfounded,” which would have cleared the mother’s name), the mother is viewed by the Appellate Court as a non-aggrieved (or unaggrieved) party even though the state’s case against her caused

her to lose her children and often her visitation privileges altogether. Yet, another example of a common ploy used by child protective services and the family courts to shield these spurious neglect/abuse proceedings from appellate review, as discussed in Chapter 2, is to pressure the mother into accepting an adjournment in contemplation of dismissal (ACD) which allows her to plead “guilty” to a charge of neglect in exchange for the CPS agency’s dropping its case against her. Mothers are told by CPS if they don’t accept the ACD they will have to go to trial and they may risk a termination of their parental rights or the loss of their visitation privileges. Nevertheless, while such an arrangement to accept an ACD may seem attractive since it both spares the mother from having to go to trial and the risks of a poor outcome, there is yet one very important wrinkle that most mothers don’t realize until it’s too late. That is, once she accepts an ACD she cannot *appeal* the injustices of the CPS case brought against her because her ACD acts as a “guilty plea” in which the mother admits to some form of “neglect” in exchange for CPS not bringing the matter to trial.

69. See *Brookings Report*, “The nation is diversifying even faster than predicted, according to new census data.”

70. A team of behavioral and medical scientists conducted a study in 2017–2018 to find out why there are such major racial disparities in schizophrenia diagnoses across the United States, as attested to by a large body of literature on this topic spanning over six decades. Gara and colleagues, in studying the electronic medical records (EMR) data of 1,657 patients at Rutgers University Behavioral Health, an aggregation of community outpatient clinics, found that African Americans had a higher rate of diagnosis of schizophrenia when compared with other racial-ethnic groups. However, since schizophrenia is a diagnosis of exclusion, one must exhaustively examine all of the patient’s symptoms to rule out any *other* possible cause before making a diagnosis of psychosis in the patient. The authors of this Rutgers’ study detected a pattern wherein clinicians were “deemphasizing the relevance of mood

symptoms” of the African American patients. Hence, major depression, for instance, was not given the same weight in the Black population as given in the White population. By “deemphasizing” depression, Black patients who might have been diagnosed with major clinical depression were instead diagnosed with schizophrenia, because the rush to make a diagnosis of schizophrenia among Black patients precluded the consideration and exploration of competing (and generally nonpsychotic) diagnoses. The study authors asserted that a case could be made for “routine screening for major depression in community mental health settings” so as to “reduce racial disparities in schizophrenia diagnoses” (p. 130). See Gara et al., “A Naturalistic Study of Racial Disparities in Diagnoses at an Outpatient Behavioral Health Clinic.”

71. Palos Hospital Report, May 28, 2018, pp. 10–11.

72. Rush University Medical Center, May 28, 2018, p. 1.

73. *Id.*, pp. 40–41.

74. Deposition testimony of the nanny, March 21, 2019, pp. 21–24.

75. Advocate Christ Medical Center, August 12, 2019, p. 15.

76. Neustein, “Trafficking of Minors by Child Protective Services/Foster Care Agencies/Minor’s Counsel,” pp. 7–13.

77. By the time this manuscript was completed for submission, the mother had lost all visitation with her daughter, as her daughter became noticeably uncomfortable with the cumbersome arrangements of being jammed into a car for most of the visit, given that Chicago weather was often not conducive to being outdoors. Her daughter was reaching puberty and was tall for her age. Crammed into a small car for many hours together with an adult supervisor was understandably not appealing to her. The child also spouted asperities and vitriol at her mother as she was unfortunately, though predictably, growing more hostile toward her while living with the other parent. As Dr. Robert Geffner has astutely pointed out in the Preface to this book, children when forced to live with the allegedly abusive parent where they are “totally cut off from the pro-

protective parent” will often “accommodate to the abuser because they have no one else to support them.” Tragically, children have been placed in such predicaments due to the punitive rulings of family courts that strip custody from mothers who strenuously try to protect their children from abuse by the other parent.

78. MPEEC Consensus Report, University of Chicago Comer Children’s Hospital Child Advocacy and Protective Service, August 1, 2019, p. 16.

79. Illinois Department of Children and Family Services Integrated Assessment, October 28, 2019, p. 6.

80. MPEEC Consensus Report, University of Chicago Comer Children’s Hospital Child Advocacy and Protective Service, August 1, 2019, p. 16.

81. *Id.*, p. 17.

82. *Id.*

83. Adjudication Order, Circuit Court of Cook County, Illinois Department of Juvenile Justice and Child Protection, Child Protection Division, March 4, 2021.

84. *Id.*, p.1.

85. Notwithstanding the strict guidelines—defined by state statutes and expounded upon in case law—for bringing “abuse” and “neglect” charges against a parent, protective mothers throughout the country suffer from the arbitrary application of abuse and neglect statutes. Such charges of abuse and neglect which are basically “invented” terms that are used as a lame excuse to try to justify the state’s intervention into a private custody proceeding so as to litigate the allegedly sexually abusive father’s position, bringing the full powers of the state to prosecute the mother, became evident in this case. To wit, the Adjudication Order confirmed its finding against the mother and thereby deemed the child a ward of the state. Its rationale as stated in the Order was “because of evidence showing that [the doctor hired by CPS as a consultant] found medical

child neglect.” Note, the key word here is “neglect.” Whereas the doctor all along had written in her reports to DCFS that the mother’s actions were consistent with “medical child *abuse*” (emphasis supplied), the Juvenile Court in handing down its judgment, based largely in part on the report issued by the doctor consulting for CPS, flippantly substituted the word “neglect” for what had been consistently termed “abuse” in this case. Surely, a trier of the facts should know the difference between “abuse” and “neglect,” since these terms are critical in child welfare proceedings to determine a safety plan and a final disposition as to whether, for example, the child is reunited with their mother or freed for adoption. State lawmakers put much effort into the writing of the statutes for child abuse and neglect matters for the given reason that such terms will define the case and portend its outcome before the court. The careless and haphazard use of such terms, such as in this case when one term was sloppily substituted for another, demonstrates that this was not a routine child welfare matter but rather a “special” case in which child welfare statutes were invoked merely to prejudice a parent in a private child custody proceeding to inure to the benefit of the other parent.

86. Adjudication Order, Circuit Court of Cook County, Illinois Department of Juvenile Justice and Child Protection, Child Protection Division, March 4, 2021, p. 1.

87. Zoom hearing in Juvenile Court on visitation matter, November 18, 2022.

88. Supplemental Case Report, Orland Park Police Department, May 14, 2019, p. 2.

89. Zoom hearing in Juvenile Court on visitation matter, November 18, 2022.

90. Neustein, “Trafficking of Minors by Child Protective Services/Foster Care Agencies/Minor’s Counsel,” p. 23.

91. Doctor’s Report, Comer Children’s Emergency Department, University of Chicago, December 26, 2020, p. 3. (Although the mother brought

the child into the hospital on the evening of Christmas Day, the report had a time stamp of December 26th because it was finalized shortly after midnight.)

92. *Id.*, pp. 1, 3.

93. Nurse's Report, Comer Children's Emergency Department, University of Chicago, December 26, 2020, p. 1.

94. Personal communications between one of the authors and the Chicago mother, August 31, 2022; October 2, 2022; November 1, 2022.

95. University of Chicago, Comer Children's Hospital, Child Advocacy and Protective Services Consult, February 28, 2021, p. 1.

96. *Id.*, p. 2.

97. *Id.*

98. *Id.*, p. 3.

99. *Id.*, p. 4.

100. The only other population where there is a rush to place children in foster care is the Orthodox Jewish population. There, prejudices arise because for a mother to bring a charge of sexual abuse against an Orthodox man poses a threat to the tightly organized patriarchal structure of that society. By stripping the child of its mother, the thorny issue of sex abuse is swept under the rug, which is *sine qua non* for a closed system to be able to maintain its hierarchical structure.

101. University of Chicago, Comer Children's Hospital, Child Advocacy and Protective Services Consult, February 28, 2021, p. 3.

chapter 7

1. Tippins, "Custody Evaluations," p. 3.

2. Gould, *Conducting Scientifically Crafted Child Custody Evaluations*, p. 33.

3. Niggemyer, "Parental Alienation Is Open Heart Surgery," p. 573.

4. *People v. Fortin*, 184 Misc. 2d 10, 706 N.Y.S.2d 611 (Sup. Ct., Nassau Co., 2000), *aff**, 289 A.D.2d 590, 735 N.Y.S.2d 819 (App. Div., 2001). *The defense in that case would have presented testimony from Dr. Gardner himself.*

5. Unpublished opinion, 2003 WL 1785921 (Cal. App. 6 Dist.).

6. In a recent case, a Maryland appellate court vacated the family court's custody award to a father and ordered the family court to rehear the case. Significantly, the appellate judges supported the mother's claim that "the trial court erred when it relied on the Parental Alienation Syndrome as a basis for rejecting her [the mother's] claims that [the father] had abused the child." While the appellate court did not rule on the merits of PAS, it did caution the family court that if PAS "is raised in the rehearing, there should be evidence to support its validity." Unpublished decision of Court of Special Appeals of Maryland, *E.V. v. J.M.*, 151 Md. App. 31 (2003).

7. Traubmann, "Junk Science Has Its Way in Court."

8. Gardner had been the father's expert in the case; Green, who had never appeared before in Silbermann's court, was selected by the judge at random from a list of experts.

9. Transcript of decision, March 28, 1991.

10. Turkat, "Management of Visitation Interference," pp. 17–18.

11. Smith and Coukos, "Fairness and Accuracy in Evaluations of Domestic Violence and Child Abuse in Custody Determinations," pp. 42, 54.

12. Corwin et al., "Child Sexual Abuse and Custody Disputes," p. 98.

13. Summit, "The Child Sexual Abuse Accommodation Syndrome."

14. Post and Corcoran, *Battered Mothers' Testimony Project*, p. 26.

15. It should be noted, however, that in actual family court cases the "experts" do not hesitate to invest extraordinary time and labor scrutinizing the accusing mother. She may undergo months of court-ordered forensic testing. Many protective mothers interviewed for this book have

expressed amazement that while they were subjected to time-consuming testing, the parent accused of abuse rarely was. Perhaps changing family courts' priorities would shift, rather than increase, family courts' burdens in such cases.

16. As discussed in more detail below, Gardner never clearly explained how he knew when sex abuse charges were false in the first place.

17. Gardner, *True and False Accusations of Child Sex Abuse*, p. 209.

18. Green, "True and False Allegations of Sexual Abuse in Child Custody Disputes," p. 452.

19. Hanson, "The Sex Abuse Controversy," p. 258.

20. Deblinger, Stauffer, and Steer, "Comparative Efficacies of Supportive and Cognitive Behavioral Group Therapies."

21. Gardner and Green do not appear to have addressed the fact that the fathers in these divorces may also experience sexual deprivation, a fact that might, after all, lead to a heightened likelihood of sexual abuse.

22. Gardner, *True and False Accusations of Child Sex Abuse*, pp. 220–221.

23. Green, "True and False Allegations of Sexual Abuse in Child Custody Disputes," pp. 451–452.

24. See Corwin et al., "Child Sexual Abuse and Custody Disputes," p. 102.

25. Froning, Letter to the Editor, p. 665; Faller, Child Sexual Abuse.

26. Corwin et al., "Child Sexual Abuse and Custody Disputes," p. 102.

27. Green, "True and False Allegations of Sexual Abuse in Child Custody Disputes," p. 454.

28. Report, July 7, 1987. Dr. Anne Meltzer, who actually drafted New York State's guidelines for sex abuse evaluations, had stated her "strong reason to believe" the child had been abused; psychiatrist Dr. Carmen Alonso found no mental illness in the mother.

29. "Betty C" would later testify before the US Congress, Subcommittee on Select Education of the Committee on Education and Labor, House of Representatives, 102nd Congress, 2nd Session, at a hearing looking into abuses of the family court system and the misuse of mental health testimony. Hearing transcript, April 20, 1992, pp. 90–97.

30. Personal communication between Arthur Greenspan, MD, former associate director of Mount Sinai Medical Center Headache Clinic, and Amy Neustein, January 18, 1999.

31. New York State Assembly Judiciary Committee, March 9, 1989, and May 18, 1989; US Congress, Subcommittee on Select Education of the Committee on Education and Labor, House of Representatives, 102nd Congress, 2nd Session, April 20, 1992.

32. Kaplan, S.L. and Kaplan, S.J. "The Child's Accusation of Sexual Abuse during a Divorce and Custody Struggle."

33. Faller, Corwin, and Olafson, "Literature Review," p. 7.

34. Gardner wrote prolifically about "parental alienation syndrome" (PAS), a term he first coined in 1985 in a brief article, "Recent Trends in Divorce and Custody Litigation." His first full discussion of the syndrome, however, appeared in 1987 in *The Parental Alienation Syndrome and the Differentiation between Fabricated and Genuine Child Sexual Abuse*. Then, in 1992, Gardner published an actual guide for practitioners in recognizing and treating PAS, *The Parental Alienation Syndrome: A Guide for Mental Health and Legal Professionals*.

35. Gardner, *True and False Accusations of Child Sex Abuse*, p. 193.

36. See Gardner, "Rebuttal to Kathleen Faller's Article," p. 310.

37. Bruch, "Parental Alienation Syndrome and Parental Alienation."

38. *Id.*, p. 530, n 11.

39. *Id.*, p. 531 (emphasis added). Although it is generally accepted that psychosis rarely appears until late adolescence, Gardner claimed that "three and four year olds are the best subjects for programming a sex-abuse accusation" (*True and False Accusations of Child Sex Abuse*, p.

194) and maintained they are receptive to the induction of a *folie à deux* psychosis.

40. Personal communication between James Yudes, Esq., and Michael Leshner, June 1997.

41. Apolo, "Munchausen Syndrome by Proxy," p. 92.

42. Sinanan and Haughton, "Evolution of Variants of the Munchausen Syndrome," p. 465.

43. Rand, "Munchausen Syndrome by Proxy: A Complex Type of Emotional Abuse Responsible for Some False Allegations of Child Abuse in Divorce," p. 135. It should be noted that Rand's "contemporary" version of MSBP differed sharply from the syndrome as originally defined. Rand was willing to apply the MSBP label even when mothers had not induced any symptoms in their children, nor exposed them to invasive or dangerous procedures, whereas these were formerly both important elements of the syndrome.

44. Rand, "Munchausen Syndrome by Proxy: Integration of Classic and Contemporary Types," p. 83.

45. Faller, "Allegations of Sexual Abuse in Divorce," slide #10.

46. Physician's letter to the court, May 4, 1996.

47. Mental health expert's report to the court, March 22, 1996, p. 9.

48. Testimony of expert, April 24, 1996, p. 20.

49. Mental health expert's report to the court, March 22, 1996, pp. 9-10.

50. Transcript, April 24, 1996, p. 19. Not only did the mental health expert leave her expertise behind in making this prediction, but she overlooked the practical factors militating against flight: the child required steady medical supervision from the caretakers she had had since birth, and there was no evidence that the mother had ever considered fleeing the jurisdiction or, indeed, ever defied a court order.

51. Mental Illness and the Workplace, a conference sponsored by the Association of Health Services Research and National Alliance for the Mentally Ill, December 8–9, 1999.

52. Gardner, “Should Courts Order PAS Children to Visit/Reside with the Alienated Parent?” p. 102.

53. *Id.*

54. Gould, *Conducting Scientifically Crafted Child Custody Evaluations*, p. 33.

55. For example, see *Sullivan County Dept. of Social Services v. Richard “C,”* 260 A.D.2d 680, 687 N.Y.S.2d 470 (3rd Dept., 1999); *Gadomski v. Gadomski*, 256 A.D.2d 675, 681 N.Y.S.2d 374; *Rogowski v. Rogowski*, 251 A.D.2d 827, 674 N.Y.S.2d 480.

56. Mental health report, February 12, 1987, p. 7.

57. *Id.*

58. If the judge and his clerk did this—and no one has ever denied Green’s claim, which was repeated in press coverage of the case—they acted in violation of the canons of judicial ethics.

59. On instructions from the counsel to New York State Senate’s Committee on Crime and Correction, the mother tape-recorded this interview with Dr. Green. The family court judge denied her motion to admit these tapes into evidence. Transcript, January 19, 1988, p. 24.

60. Report to the court, July 7, 1987, p. 2.

61. The use of vague psychological signs to predict “rebellion” has its historical precedent in the antebellum South. Henrietta Buckmaster pointed out in *Let My People Go* that when Black fugitive slaves were caught and tried before the courts, charges of “mental instability” against them often overlapped with charges of criminal actions, which gave rise to the term “flighty nigger.” That is, slaves were accused of being unsteady and/or dishonest for having tried to escape—“one week they swore they had no desire for freedom and the next week disappeared” (p. 17).

62. Judge's notes, January 17, 2001; custody evaluation, June 20, 2003.

63. Decision, July 14, 1988, p. 23.

64. *Id.*, p. 38.

65. *Id.*, p. 99.

66. *Id.*, p. 104.

67. *Id.*, p. 62.

68. Trial transcript, June 12, 2001, pp. 45–50.

69. *Id.*, June 22, 2001, p. 39.

70. Once a protective mother has been branded with one of the labels endorsed by family court judges, almost anything she says or does may be used against her as further “proof” of her “illness.” For example, one protective mother, responding to her allegedly abusive ex-husband’s second demand to reduce his child support payments (though he admitted to an annual income of about \$130,000), told the judge she had begged her ex-husband not to take her to court, saying she had been willing to settle for anything he would pay; even if he paid no child support at all, she said, she would find a way to care for her children, because she loved them. In granting the father’s request to slash his child support obligation, the judge went out of his way to criticize the mother’s comment, which he said was intended to malign the father by implying that his attempt to reduce child support called into question “the level of love that he has for his sons.” In fact, the judge claimed in his written decision that the mother (who had tried to stay out of court) was “obsessed” with litigation, while the father (who insisted on several court hearings aimed at reducing his child support) “loved” his children (decision, December 23, 1997).

71. Gardner, “Should Courts Order PAS Children to Visit/Reside with the Alienated Parent?”

72. Gardner, “Rebuttal to Kathleen Faller’s Article,” p. 310. Despite intense public criticism, Gardner repeated the same assertions about

PAS in an article published in 2001 (see preceding note), claiming the use of a consistent “definition of the parental alienation syndrome . . . since [his] first publication on the disorder in 1985.”

73. Faller, “The Parental Alienation Syndrome,” p. 106.

74. *Id.*

75. Transcript, July 15, 1985, pp. 4–5.

76. New York Penal Law §§ 130.65(3), 130.00(3).

77. Mother’s attorney’s affirmation to Appellate Division, July 24, 1986.

78. Peachtree Psychological Associates, child custody evaluation, February 17, 2000, p. 24.

79. *Id.*, p. 6.

80. Transcript, emergency hearing for change of custody, February 18, 2000, p. 19 (emphasis added).

81. *Id.*, p. 49.

82. Transcript of emergency hearing, February 18, 2000, p. 48–49.

83. Attorney Richard Ducote’s letter to the members of the Cobb County Bar Association and the Metro Atlanta Board of Mental Health Professionals, April 29, 2002.

84. Peachtree Psychological Associates, child custody evaluation, p. 26.

85. Transcript, pp. 52, 53.

86. *Id.*, p. 53.

87. *Peachtree Psychological Association*, child custody evaluation, p. 26.

88. Therapist’s affidavit, October 31, 1996, pp. 3–4.

89. Therapist’s affidavit, October 6, 1996, p. 3.

90. Medical report, January 24, 1996, pp. 2–3.

91. MDIC report, March 12, 1996, p. 41.

92. Transcript, September 26, 1996, pp. 29–55.
93. Evaluator's report to the court, December 6, 1995, p. 11.
94. Transcript, March 6, 1996, p. 20.
95. *Id.*, p. 28.
96. Evaluator's report, p. 11.
97. Transcript, March 6, 1996, p. 34.
98. Transcript, November 1, 1996, p. 33.
99. Report of visitation program director, January 24, 1997, p. 7 (emphasis added).
100. *Id.*, pp. 8–10.
101. Findings and order after hearing, October 2, 1996, p. 4.
102. Therapist's affidavit, December 27, 1996, pp. 2–4.
103. Letter of pediatric nurse to the court, October 1, 1992.
104. Mental health report on the child, November 9, 1991, p. 10 (emphasis added).
105. Letter to the law guardian from the chief of pediatrics at New York Medical College, Department of Pediatrics, June 8, 1992, pp. 1–2.
106. Mental health report on the child, p. 5.
107. Mental health report on the mother, November 9, 1991, p. 7.
108. The tests included the Wechsler Adult Intelligence Scale (WAIS); Rorschach; the Minnesota Multiphasic Personality Inventory (MMPI); the Goodenough-Draw-a-Person test; and the Millon Clinical Multiaxial Inventory (MCMI).
109. Mental health report on the mother, p. 6.
110. Psychologist's letter to the mother, November 6, 1992, p. 2.
111. Dr. Arthur Green's report to the court, July 7, 1987.
112. Similar emotional responses were found in a study of Australian mothers who had received undeserved mental illness labels from family courts. In "Misdiagnosed Children, Misdiagnosed Parents," unpub-

lished doctoral dissertation (2003), Helen Hayward-Brown reports the day-to-day psychological effects on a mother who was wrongly diagnosed with Munchausen Syndrome by Proxy (MSBP) after making a sex abuse charge against her ex-husband. Hayward-Brown describes a mother's tortuous progress through the courts: "Her story became a stream of consciousness throughout an entire day—anxiety, stress and emotion became clearly evident. Her narrative was punctuated by high levels of fear and anger . . . [and] her distress could particularly be seen in her attempts to try and comprehend what happened to her" (p. 180).

113. Neustein and Leshner, "Evaluating PAS," pp. 322–325.

114. Transcript of court hearing, November 25, 2021, p. 25; Deposition of father, May 28, 2021, pp. 95–99.

115. Family Court Evaluator's Questionnaire, January 30, 2022, p. 2.

116. *Id.*, p. 19.

117. Temporary Nonprejudicial Custody Order, "In the General Court of Justice District Court Division," North Carolina Buncombe County, October 17, 2022, p. 3.

118. Family Court Evaluator's Questionnaire, January 30, 2022, p. 19.

119. *Id.*, p. 5.

120. Personal communication between one of the authors and the mother, February 11, 2022. The mother's concerns about the father's apparent preoccupation with changing his daughter's clothes warrants consideration particularly among mental health professionals. This issue undoubtedly is beyond the scope of this book. However, we must point out that potentially important clinical data—namely possibly obsessive compulsive behavior concomitant with alleged sexual boundary violations—are lost in a case like this one, when expert witnesses summarily dismiss a mother's concerns about her child. All in all, experts who deny the validity of sexual abuse have allegedly hampered their own profession by

precluding what might be important empirical data for the study and research of behavioral patterns associated with alleged sexual abuse.

121. Personal communication between one of the authors and the mother, March 25, 2022.

122. Transcript of court hearing, November 25, 2021, p. 10.

123. *Id.*, pp. 10–11.

124. Rybicki, “Parental Alienation and Enmeshment Issues in Child Custody Cases,” p. 3.

125. Garber, “The Dynamics of the Enmeshed Family System Ten Years Later,” p. 97.

126. Shortly before submission of this manuscript, we learned the mother was given temporary custody of her daughter, although the final order had not yet been written. The father enjoys generous visitation privileges (although the temporary order has suspended his overnight visits) and, according to the mother, continues his efforts to re-litigate the matters that were before the court. However, much to the judge’s credit, she did not buy into the hostile perceptions of protective mothers encouraged by biased mental health experts in the case, and too many others of the same breed. Nevertheless, the mother endured years of expensive and distressing litigation simply because of the debased mental health theories that still pervade the family courts. Other mothers have not been as fortunate.

127. Transcript of Family Court of the State of New York, City of New York, County of Kings, February 19, 2021, pp. 16.

128. *Id.*, p. 17.

129. *Id.*, p. 55.

130. New York City, Administration for Children’s Services, “Court-Ordered Investigation,” November 26, 2018, p. 3.

131. Transcript of Family Court of the State of New York, City of New York, County of Kings, February 19, 2021, pp. 58, 62–63. Transcript

of Family Court of the State of New York, City of New York, County of Kings, February 22, 2021, pp. 9–11, 84–85.

132. Family Court of the State of New York, County of Kings, Decision and Order After Trial, October 1, 2021, p. 30.

133. *Id.*

134. New York City, Administration for Children's Services, "Court-Ordered Investigation," November 26, 2018, p. 2.

135. *Id.*

136. *Id.*, p. 7.

137. *Id.*

chapter 8

1. Pagnozzi, "Mom Was Trying to Help Her Kids," p. 13.

2. When the FBI captures a fugitive mother, the child usually goes directly into the father's custody. This is so, even if the mother had legal custody at the time she went on the run, because in most such cases the fathers seek a change of custody in their favor once the mothers disappear. Unable to defend themselves in court, the mothers lose custody. Even if this has not happened, their imprisonment for "kidnapping" is usually enough to persuade an already hostile family court to switch custody to the father. See Pennington and Woods, *Legal Issues and Legal Options in Civil Child Sexual Abuse Cases*, pp. 17–19.

3. Personal communication with Kathy Rosenthal, director of Children's Rights of America, formerly a founding member of the National Center for Missing and Exploited Children, May 12, 1993.

4. Massat and Lundy, "Reporting Costs to Nonoffending Parents in Cases of Intrafamilial Child Sexual Abuse," p. 379.

5. Report of Jeremiah B. McKenna, chief counsel to New York State Senate Committee on Crime and Correction, October 31, 1987, p. 1.

6. *Id.*, p. 2. In 1986, Bob Herbert, then a regular columnist for the *New York Daily News* (now a *New York Times* columnist), did a three-part series on this case, beginning on October 28, 1986, titled “Who Serves the Children?”

7. Herbert, “Who Serves the Children?” p. 29.

8. Perhaps the most outrageous thing about these surprise visits was that CPS never gave any reason for insisting on them. Normally such tactics are used when parents are accused of inadequate care such as unsanitary conditions or lack of food—conditions that can be concealed if the parents know when to expect a CPS visit. In this case, in the absence of any such charge, the visits were clearly intended mainly to harass and frighten the mother—which they did.

9. See Chapters 4 and 5 for more details of her case.

10. *Stolen Children: How and Why Parents Kidnap Their Kids—and What to Do about It*, p. 167.

11. Della Howard, “Lost Limb” Syndrome.

12. Charlinda Joseph, “Family Court Stolen Innocence” (unpublished poem).

13. Apart from our research for this book, we have devoted considerable study to the Orthodox Jewish community’s reaction to intrafamilial (and stranger) sexual abuse. Protective mothers such as this Rockland County mother often encounter, in addition to a hostile family court, ostracism from their own religious communities, whose leaders are either conspicuously silent about the abuse charge or strongly supportive of the alleged offender—leaving the child victim and the protective parent standing alone. Such a situation can provoke self-destructive behavior, as was the case with this protective mother. See Neustein and Leshner, “The Silence of the Jewish Media on Sexual Abuse in the Orthodox Jewish Community”; Neustein and Leshner, “Does the Jewish Community Sacrifice Victims of Sexual Abuse?”; Leshner, “Speaking with Their Silence.”

14. The mother spoke with one of us the same day these devastating events took place in court. The next day, she and her daughter were dead.
15. Mike McAlary, "Court with Disney Touch," p. 28; Viva, "Women and Children Last," p. 115.
16. See Chapter 5 for more details on this case.
17. Hearing before the Subcommittee on Select Education of the Committee on Education and Labor, US House of Representatives, 102nd Congress, Second Session, April 20, 1992, pp. 141–142.
18. Mental health report, March 21, 1992, p. 2 (emphasis added).
19. Such orders are not uncommon in family courts. In theory, they are intended to "protect" a child from the invasion of her privacy. We suspect that protection of the family court system from public scrutiny is more often the actual motive. In any event, how these orders can be squared with the First Amendment is a question we hope to see matrimonial attorneys explore in the future.
20. Notice of Application for Recognizance or Bail, January 18, 2003.
21. CPS petition, March 7, 1997, p. 2. 22.
22. *Id.*
23. See Chapter 5 for more details concerning the case.
24. Therapist's letter, June 22, 2000, p. 3; teacher's report, June 8, 2000.
25. Fields-Meyer, "In the Dead of Night"; Jaffe and Rich, "Deadly Triangle."
26. Jaffe and Rich, "Deadly Triangle."

chapter 9

1. Editor of *Sexual Assault Report*, a bimonthly publication of the Civic Research Institute, a nonprofit educational resource center founded in

2001 for lawyers, public prosecutors, and mental health professionals handling matters of sexual abuse and rape in criminal and civil proceedings. Zorza was formerly staff counsel at the National Center for Women and Family Law.

2. *In re Turner*, 94 Kan. 115, 145 P. 871.

3. *Helton v. Crawley*, 241 Iowa 296, 41 N.W.2d 60.

4. *Words and Phrases*, p. 100.

5. *Gardner v. Hall*, 132 N.J. Eq. 64, 26 A.2d 799 (Chancery Div., 1942), quoting *Lippincott v. Lippincott*, 97 N.J. Eq. 517, 128 A. 254.

6. *Matter of Female S.*, 111 Misc. 2d 313, 444 N.Y.S.2d 829 (Fam. Ct., 1981).

7. *Kennedy v. Kennedy*, 55 Md. App. 299, 462 A.2d 1208 (Md. App., 1983) (emphasis added).

129 N.J. Super. 486, 324 A.2d 90 (Chancery Div., 1974).

8. Indeed, homosexuality was still officially listed as a mental disorder by the American Psychiatric Association until 1973, just one year before this case was decided.

9. That this argument was based directly on a decision of the US Supreme Court—*Wisconsin v. Yoder*, 406 U.S. 205, 92 S. Ct. 1526, 32 L. Ed. 2d 15 (1972)—did not help.

10. *Stanley v. Illinois*, 405 U.S. 645, 92 S. Ct. 1208, 31 L. Ed. 2d 551 (1972); *Santosky v. Kramer*, 455 U.S. 745 (1981).

11. It is well known that misguided attitudes about rape—that victims “asked for it,” that it was related to female promiscuity—have long interfered with rape prosecutions. Education has slowly begun to change this. It is not unreasonable to hope that mistaken beliefs about sex abuse reports can similarly be altered through education.

12. Winner, *Divorced from Justice*, p. 133.

13. See Chapter 1.

14. McAlary, “Court with Disney Touch.”

chapter 10

1. 42 U.S.C. §§ 5101 *et seq.*
2. Neustein and Leshner, “Legislative Solutions to the Protective Parent Backlash.”
3. See Part II, Chapter 4 of this book.
4. Pennington, *The Judicial Training Act*, p. 10.
5. States such as California originally enacted provisions for ex parte changes of custody to shield battered women from having to face their abusers in court. Ironically, the same laws have often served the interests of abusive fathers, who can now seize custody without notice to their wives.
6. This has already been proposed by New York State assemblywoman Cecile Singer, who urged the New York State Legislature in 1991 to require CPS to affirmatively demonstrate every ninety days the need for continued placement of a child away from its home, pending final determination of an abuse or neglect complaint. Assemblywoman Singer formulated this proposal after Dr. Amy Neustein testified before a state legislative panel on how family courts, in denying mothers the statutorily mandated removal hearing, were able to seize children without sufficient evidence to warrant state intervention into the privacy of family life.
7. California Family Code § 3027.5.
8. See Part II, Chapter 4 of this book.
9. Adding this eligibility requirement to CAPTA addresses the backlash against mental health professionals by providing them with the assistance of a state child welfare agency in challenging an actual or threatened punitive contempt ruling or threat of contempt.
10. In 1998, another complaint against Deutsch—then a JHO—was addressed to New York’s chief administrative judge for matrimonial matters. The administrative judge wrote to the complainants on September

9, 1998, advising them that “Judicial Hearing Officer Leon Deutsch was not redesignated to serve as a Judicial Hearing Officer for another term” and therefore declining to pursue the complaint further. In April 2003, however, we learned that Deutsch was still serving as a JHO. The administrative judge did not respond to inquiries. It would seem that bad family court judges are as hard to get rid of as bad pennies. And Deutsch has yet to answer any of the complaints against him.

11. Today’s trend is that wherever federal courts can decline jurisdiction over a child-related case, they do so. Partly, no doubt, this reflects overcrowded dockets throughout the federal trial courts. But it also reflects a prejudice that litigation involving children is simply not as important and prestigious as other sorts of cases.

12. Gothard, “Children in Courtrooms,” p. 115.

13. Pennington, *The Hardest Case*, p. 20.

14. Such a questionnaire was formulated in 1993 by one of us at the request of attorney Sherry Quirk, senior partner at the firm of Verner Lipfert in Washington, DC.

15. Such a case was reported to us. After a judge determined that a father had abused his child, the case was referred to a judicial hearing officer (JHO) notoriously hostile to mothers. The JHO heeded the law guardian’s recommendation that the abusive father’s visitation be increased. The mother then asked the judge to remove the law guardian. He agreed to do so—but only if the mother waived her right to have the judge (who had already ruled that the father had committed abuse) review the JHO’s findings. If our recommendations are adopted, such behavior will be automatic grounds for disqualifying a judge or a JHO.

16. Congress, in its enactment of CAPTA, evidently anticipated future amendments to its guidelines by establishing the National Center on Child Abuse and Neglect (NCCAN). NCCAN’s stated purpose is to review how child abuse cases are handled by the courts and the child protective service agencies, to see whether their performance is in compliance with

the goals of child protection set forth under CAPTA. The findings of a preliminary study funded by NCCAN (that were confirmed when the study was completed) showed “a consistent pattern of punitive responses [to the nonoffending parent] to the reporting of child maltreatment . . . a pattern of obstruction of investigations . . . in apparent contradiction of the legal requirements of CAPTA” (Carol Rippey Massat, coprincipal investigator of the NCCAN-funded study, in a letter to George Burgasser, acting chief of Child Exploitation and Obscenity Section, US Department of Justice, February 8, 1994, p. 2).

Chapter 11

1. For example, in *Krause v. Krause* (Docket No. C 02–5277 JSW, N.D. Cal.), a California federal district court judge ruled in 2003 that a woman could not sue the court-appointed attorney who had urged her placement with her father when she was a minor, despite allegedly knowing of his abusive behavior and conspiring to manipulate the family court proceeding. The court stated, “Under governing California law . . . therapists, guardians and court-appointed attorneys, are accorded quasi-judicial immunity . . . attorneys for children in child abuse actions are granted immunity from damages claims.” A similar holding is found in *Fox v. Wills*, Docket No. 01075, Court of Special Appeals of Maryland, 2002.

2. The reason for this privilege is that if judges could be sued for their official acts, they would face the threat of litigation every time they decided a case, particularly when they ruled against a powerful litigant. Thus, judicial immunity from suit is one of the safeguards of an independent judiciary.

3. We have been astonished at the number of law guardians who have made critical recommendations on behalf of their young clients—including recommendations that caused small children to be removed from the only homes they had ever known, in the absence of any evidence that

they faced any danger while living there—without having so much as spoken to or laid eyes on them.

4. Ordinary lawyers may communicate with others (although not with the court) without giving notice to all other parties. Judges, however, may not do so, since their role requires impartiality. Similarly, law guardians, who do not represent either parent against the other and who offer advice to the court in this relatively impartial role, should be required to follow rules concerning ex parte contact similar to those that judges follow.

5. It may be objected that the law guardian's role is not definitely over, since the appellate court could reverse the family court, causing it to conclude that child abuse occurred after all and therefore requiring (once again) the appointment of a law guardian. However, since the law guardian in this scenario has maintained that no abuse occurred, a reversal by the appellate court should result in the appointment of a new law guardian, one prepared to put the appellate court's ruling into practice. Even if the former law guardian is to be reappointed, it can be only with a radically new mandate.

6. Tippins, "Custody Evaluations," p. 3.

7. Melton et al., *Psychological Evaluations for the Courts*, p. 484.

8. Schafran, "Evaluating the Evaluators." Schafran proposes that all custody evaluations contain the same required elements, including a list of all parties interviewed, an explanation of their relationship to the litigants, a listing of all abuse allegations made by any party, abuse findings, and a listing of evidence that led to the findings.

9. Friedrich, "Sexual Behavior in Sexually Abused Children."

10. *Severson v. Hansen*, 529 N.W.2d 167 (N.D., 1995).

11. Report of psychologist to the court, April 2, 2003, pp. 2–3. J. Wittmann, "Child Advocacy and the Scientific Model in Family Court," pp. 77–78.

12. Indeed, in 1999, two mental health professionals published an article calling for a complete “moratorium of mental health professionals’ participation in child custody evaluations” until the profession developed better and more reliable procedures for reaching conclusions in such cases. Otherwise, they argued, “the mental health professional cannot ethically conduct these evaluations.” O’Donohue and Bradley, “Conceptual and Empirical Issues in Child Custody Evaluations,” p. 320.

13. For an analysis of how judges can best work with expert medical testimony in other kinds of cases, see Neustein, “Getting Straight Answers from Experts.”

14. *Matter of Sayeh R. v. Monroe County Dept. of Social Services*, 91 N.Y.2d 306, 693 N.E.2d 724 (1997) (Bellacosa, dissenting on a jurisdictional issue).

15. Martindale, “Cross-examining Mental Health Experts in Child Custody Litigation,” p. 488.

16. Schechter and Edleson, *Effective Intervention in Domestic Violence and Child Maltreatment*. This text will be referred to hereafter as the “Greenbook.”

17. *Id.*, p. 5.

18. *From Madness to Mutiny*, pp. 220 and 264n16.

19. Stewart, “Evolving Federal Policies and Their Implications for Greenbook Interventions,” p. 41.

20. *Id.*

21. *Id.*, p. 45. See also Miller and Robuck, *Child Abuse & Domestic Violence*, pp. 10–12.

22. Salcido Carter, “Advocacy Perspectives on the Greenbook,” p. 87. *Id.*, p. 97.

23. Edwards and Lucero, “The Santa Clara County Greenbook Story,” pp. 52–53.

24. Edleson, "The Overlap Between Child Maltreatment and Woman Battering," pp. 134–154.
25. Applied Survey Research, *Toward a More Coordinated, County-Wide Response to Family Violence*, p. 21.
26. Banks, Landsverk, and Wang, "Changing Policy and Practice in the Child Welfare System," pp. 903–932.
27. Mandel and Wright, "Building on the Greenbook," p. 122.
28. *Id.*, note 9, p. 71.